4463

Executive Order

Article XXIX of the Consular Regulations of 1896, entitled "Record Books and Archives", is hereby canceled and the following substituted:

ARTICLE XXIX

Record Books and Archives

1940 CFR 117

604. *Record books at consulates.*—The following record books are to be kept at consular offices:

At inland consulates:

(1) A record of fees and declared exports, in which shall be recorded daily in the order in which received all fees for services, including gratis services, authorized by the Tariff of United States Consular Fees, the serial number, date, and amount of each fee, the nature of the service, and the person for whom performed. When fees for invoices are recorded, the kind, quantity, and value of the merchandise covered by the invoice shall also be recorded.

(2) A fee stamp ledger, in which shall be kept a daily record of the kinds and values of all fee stamps received and canceled, or otherwise expended.

(3) A register of correspondence received and sent, in which shall be recorded daily every communication of whatever nature received by or sent from the office, together with the postage expended on each.

(4) A miscellaneous record book, in which shall be kept such records as the Department may from time to time direct, as well as records of all official matters pertaining to the office that require to be recorded and for which no other book is provided.

(5) A passport book, in which shall be recorded, in the prescribed manner, all passports issued by the consulate.

(6) A register of landing or debenture certificates, in which shall be recorded the number and date of each certificate authenticated, the port of shipment, the name of the vessel from which the merchandise was landed, the name of the master, the landing port, the numbers, marks and contents of packages, the date of the bill of lading, the name of the shipper, the name of the consignee, and the date of unlading.

At seaport consulates:

In addition to the foregoing, the following record books will be kept at seaport consulates:

(1) A record of arrivals and departures of American vessels, in which shall be recorded the number, date of arrival, class, name, and tonnage of all American vessels arriving at and departing from the port, where belonging, from what port, where bound, date of clearance, and cargo both inward and outward by kind, quantity, and value.

(2) A seaman's register, in which shall be recorded a detailed list of all seamen shipped, discharged, deserted, or deceased at the consulate, the name of the vessel to which belonging, and the arrears of wages and extra wages collected and paid on account of each.

(3) A record of American seamen relieved, in which shall be recorded the number and names of all seamen relieved, from what vessel discharged, date and cause of discharge, date of leaving the consulate, and a detailed statement of the amounts disbursed on account of each.

(4) A ship's daily journal, in which should be recorded the name of every American vessel arriving at the port, its registry number, tonnage, where belonging, date of arrival, from what port, when and where built, owners, cargo both inward and outward and value thereof, the names of the master and other deck officers, any service performed for or any incident occurring to the vessel during its stay in port, and the date of its departure.

(5) A marine note of protest book, for the entry of marine notes of protest, in accordance with Form No. 37.

(6) A marine extended protest book, for the entry of extended notes of protest, in accordance with Form No. 38.

605. *Record books at consular agencies.*—The following record books are required to be kept at consular agencies:

At inland consular agencies:

(1) A record of fees and declared exports.

(2) A fee stamp ledger.

(3) A register of correspondence received and sent.

(4) A miscellaneous record book.

(5) A register of landing or debenture certificates.

At seaport consular agencies:

In addition to the foregoing, the following record books will be kept at seaport consular agencies:

(1) A record of arrivals and departures of American vessels.

(2) A seamen's register.

(3) A record of American seamen relieved.

(4) A ship's daily journal.

(5) A marine note of protest book.

(6) A marine extended protest book.

(7) A record of official services to American vessels and seamen, in which shall be recorded an itemized statement of the official services actually and necessarily rendered to American vessels and seamen.

606. *Files.*—In addition to the record books mentioned in paragraphs 604 and 605, the following files are to be kept at consulates or agencies as may be required:

(1) A file of correspondence received and sent, which shall contain all correspondence received and copies of all correspondence sent, classified and arranged in accordance with regulations prescribed by the Secretary of State.

(2) A file of the Department's numbered circular instructions.

(3) A file of original invoices certified at the office during the past five years.

(4) A file of powers of attorney to sign invoices.

(5) A file of triplicate bills of health.

(6) A file of duplicate accounts and returns of the office.

(7) A file of approved applications of American citizens for registration, and card file thereto.

(8) A file of alien visa applications, visa refusals and refusal notification cards.

(9) A confidential file, containing true readings of code telegrams sent and received, and correspondence of a confidential nature.

(10) A file of the efficiency records of consular officers and employees submitted by the officer in charge.

607. *What are to be regarded as official documents.*—The originals of all instructions, letters and telegrams addressed to a consular officer and copies of all despatches, letters, and telegrams written by him in his official capacity including all official reports, accounts and returns, also all the record books described in this article, and all books presented to the consulate or sent to it by the Department of State are to be considered as official documents. They must be deposited among the consular archives, after being duly entered upon the inventory of United States government property of the consulate (Form No. 223) and must be transferred by the officer in charge, together with all other property in his care belonging to the United States, to his successor in office.

608. *Care of archives.*—All consular officers are instructed to take care that the archives of their offices are kept in proper order; and with this in view, as well as to facilitate reference to previous correspondence, they will keep in their offices records (Form No. 223) of all the documents, papers, letters and books which have been received or sent on matters connected with their official duties.

CALVIN COOLIDGE

THE WHITE HOUSE,
June 26, 1926.

[No. 4463]

GOVERNMENT PRINTING OFFICE